



Bill Number: H.B. 2032

Angius Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Prohibits any testing window for the administration of the statewide assessment from being longer than six, rather than four, consecutive school weeks.
2. Prohibits the statewide assessment testing window for students in grades three through eight from beginning before the second week, rather than the fourth week, of April.

ANGIUS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2032
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-701, Arizona Revised Statutes, is amended to
3 read:

4 15-701. Common schools; promotions; requirements;
5 certificate; supervision of eighth grades by
6 superintendent of high school district; high school
7 admissions; academic credit; definition

8 A. The state board of education shall:

9 1. Prescribe a minimum course of study incorporating the academic
10 standards adopted by the state board of education to be taught in the
11 common schools.

12 2. Prescribe competency requirements for the promotion of pupils
13 from the eighth grade and competency requirements for the promotion of
14 pupils from the third grade that incorporate the academic standards in at
15 least the areas of reading, writing, mathematics, science and social
16 studies. The competency requirements for the promotion of pupils from the
17 third grade shall include the following:

18 (a) A requirement that a pupil not be promoted from the third grade
19 if the pupil ~~obtains a score on the reading portion of the statewide~~
20 ~~assessment that~~ does not demonstrate sufficient reading skills as
21 established by the state board. A pupil may not be retained ~~pursuant to~~
22 ~~this subdivision if data regarding the pupil's performance on the~~
23 ~~statewide assessment is not available before the end of the current~~
24 ~~academic year and may not be retained~~ more than once. A pupil who is not
25 retained ~~due to the unavailability of test data~~ AND WHO OBTAINS A SCORE ON
26 THE READING PORTION OF THE STATEWIDE ASSESSMENT THAT DOES NOT DEMONSTRATE
27 SUFFICIENT READING SKILLS must receive evidence-based intervention and
28 remedial strategies pursuant to subdivision (c) of this paragraph ~~if the~~

~~1 third grade assessment data subsequently does not demonstrate sufficient
2 reading skills.~~

3 (b) A mechanism to allow a school district governing board or
4 charter school governing body to promote from the third grade a pupil who
5 does not demonstrate sufficient reading skills pursuant to subdivision (a)
6 of this paragraph if the pupil:

7 (i) Is an English learner or a limited English proficient student
8 as defined in section 15-751 and has had fewer than three years of English
9 language instruction.

10 (ii) Is in the process of a special education referral or
11 evaluation for placement in special education, has been diagnosed as
12 having a significant reading impairment, including dyslexia, or is a child
13 with a disability as defined in section 15-761 if the pupil's
14 individualized education program team and the pupil's parent or guardian
15 agree that promotion is appropriate based on the pupil's individualized
16 education program.

17 (iii) Has demonstrated or subsequently demonstrates sufficient
18 reading skills or adequate progress toward sufficient reading skills of
19 the third grade reading standards as evidenced through a collection of
20 reading assessments approved by the state board of education, which
21 includes an alternative standardized reading assessment approved by the
22 state board.

23 (iv) Receives intervention and remedial services during the summer
24 or a subsequent school year pursuant to subdivision (c) of this paragraph
25 and demonstrates sufficient progress based on guidelines issued pursuant
26 to subsection B, paragraph 7 of this section.

27 (c) Evidence-based intervention and remedial strategies developed
28 by the state board of education for pupils who are not promoted from the
29 third grade. A school district governing board or charter school
30 governing body shall offer more than one of the intervention and remedial
31 strategies developed by the state board of education. The parent or
32 guardian of a pupil who is not promoted from the third grade and the
33 pupil's teacher and principal may choose the most appropriate intervention
34 and remedial strategies that will be provided to that pupil. The
35 intervention and remedial strategies developed by the state board of
36 education shall include:

37 (i) A requirement that the pupil be assigned for evidence-based
38 reading instruction by a different teacher who was designated in that
39 teacher's most recent performance evaluation in one of the top two
40 performance classifications.

41 (ii) Summer school reading instruction.

42 (iii) In the next academic year, intensive reading instruction that
43 occurs before, during or after the regular school day, or any combination
44 of before, during and after the regular school day.

45 (iv) Small group and teacher-led evidence-based reading
46 instruction, which may include computer-based or online reading
47 instruction.

1 (d) A requirement that a school district governing board or charter
2 school governing body that promotes a pupil pursuant to subdivision (b) of
3 this paragraph provide annual reporting to the department of education on
4 or before October 1 that includes information on the total number of
5 pupils subject to the retention provisions of subdivision (a) of this
6 paragraph, the total number of students promoted pursuant to subdivision
7 (b) of this paragraph, the total number of pupils retained in grade three
8 and the interventions administered pursuant to subdivision (c) of this
9 paragraph.

10 3. Provide for universal screening of pupils in preschool programs,
11 kindergarten programs and grades one through three that is designed to
12 identify pupils who have reading deficiencies pursuant to section 15-704.

13 4. Develop evidence-based intervention and remedial strategies
14 pursuant to paragraph 2, subdivision (c) of this subsection for pupils in
15 kindergarten programs and grades one through three who are identified as
16 having reading deficiencies pursuant to section 15-704.

17 5. Distribute guidelines for the school districts to follow in
18 prescribing criteria for the promotion of pupils from grade to grade in
19 the common schools. These guidelines shall include recommended procedures
20 for ensuring that the cultural background of a pupil is taken into
21 consideration when criteria for promotion are being applied.

22 B. School districts and charter schools shall provide annual
23 written notification to parents of pupils in kindergarten programs and
24 first, second and third grades that a pupil who does not demonstrate
25 sufficient reading skills pursuant to subsection A of this section will
26 not be promoted from the third grade. School districts and charter
27 schools shall identify each pupil who is at risk of reading below grade
28 level in kindergarten and grades one, two and three and shall provide to
29 the parent of that pupil a specific written notification of the reading
30 deficiency within three weeks after identifying the reading deficiency.
31 The notification shall include the following information:

32 1. A description of the pupil's specific individual needs.

33 2. A description of the current reading services provided to the
34 pupil.

35 3. A description of the available supplemental instructional
36 services and supporting programs that are designed to remediate reading
37 deficiencies. Each school district or charter school shall offer more
38 than one evidence-based intervention strategy and more than one remedial
39 strategy developed by the state board of education for pupils with reading
40 deficiencies. The notification shall list the intervention and remedial
41 strategies offered and shall instruct the parent to choose, in
42 consultation with the pupil's teacher, the most appropriate strategies to
43 be provided and implemented for that child.

44 4. Parental strategies to assist the pupil to attain reading
45 proficiency.

1 5. The frequency with which the school district or charter school
2 will provide timely updates and information to the parent on the pupil's
3 progress toward reading proficiency.

4 6. A statement that the pupil will not be promoted from the third
5 grade if the pupil does not demonstrate sufficient reading skills pursuant
6 to subsection A, paragraph 2, subdivision (a) of this section, unless the
7 pupil is exempt from mandatory retention in grade three or the pupil
8 qualifies for an exemption pursuant to subsection A, paragraph 2,
9 subdivision (b) of this section.

10 7. A description of the school district or charter school policies
11 on midyear promotion to a higher grade.

12 C. Pursuant to the guidelines that the state board of education
13 distributes, the governing board of a school district shall:

14 1. Prescribe curricula that include the academic standards in the
15 required subject areas pursuant to subsection A, paragraph 1 of this
16 section.

17 2. Prescribe criteria for the promotion of pupils from grade to
18 grade in the common schools in the school district. These criteria shall
19 include accomplishment of the academic standards in at least reading,
20 writing, mathematics, science and social studies, as determined by
21 district assessment. Other criteria may include additional measures of
22 academic achievement and attendance.

23 D. The governing board may prescribe the course of study and
24 competency requirements for promotion that are in addition to or higher
25 than the course of study and competency requirements the state board
26 prescribes.

27 E. A teacher shall determine whether to promote or retain a pupil
28 in a grade in a common school on the basis of the prescribed criteria.
29 The governing board, if it reviews the decision of a teacher to promote or
30 retain a pupil in a grade in a common school as provided in section
31 15-342, paragraph 11, shall base its decision on the prescribed criteria.

32 F. A governing board may provide and issue certificates of
33 promotion to pupils whom it promotes from the eighth grade of a common
34 school. Such certificates shall be signed by the principal or
35 superintendent of schools. If there is no principal or superintendent of
36 schools, the certificates shall be signed by an eighth grade teacher. The
37 certificates shall admit the holders to any high school in this state.

38 G. Within any high school district or union high school district,
39 the superintendent of the high school district shall supervise the work of
40 the eighth grade of all schools that do not employ a superintendent or
41 principal.

42 H. A school district shall not deny a pupil who is between the ages
43 of sixteen and twenty-one years admission to a high school because the
44 pupil does not hold an eighth grade certificate. Governing boards shall
45 establish procedures for determining the admissibility of pupils who are
46 under sixteen years of age and who do not hold eighth grade certificates.

1 I. The state board of education shall adopt rules to allow common
2 school pupils who can demonstrate competency in a particular academic
3 course or subject to obtain academic credit for the course or subject
4 without enrolling in the course or subject.

5 J. A school district may conduct a ceremony to honor pupils who
6 have been promoted from the eighth grade.

7 K. For the purposes of this section, "dyslexia" means a condition
8 that:

9 1. Is neurological in origin.

10 2. Is characterized by difficulties with accurate or fluent word
11 recognition and by poor spelling and decoding abilities, including
12 difficulties that typically result from a deficit in the phonological
13 component of language that is often unexpected in relation to other
14 cognitive abilities and to the provision of effective classroom
15 instruction.

16 3. May include secondary consequences such as problems with reading
17 comprehension and reduced reading experience that may impede the growth of
18 vocabulary and background knowledge.

19 Sec. 2. Section 15-741, Arizona Revised Statutes, is amended to
20 read:

21 15-741. Assessment of pupils: definition

22 A. The state board of education shall:

23 1. Adopt rules for the purposes of this article pursuant to title
24 41, chapter 6.

25 2. Adopt and implement a statewide assessment to measure pupil
26 achievement of the state board-adopted academic standards in reading,
27 writing and mathematics in at least four grades designated by the state
28 board. The state board shall determine the manner of implementation. The
29 state board may administer assessments of the academic standards in social
30 studies and science, except that a pupil shall not be required to meet or
31 exceed the social studies or science standards measured by the statewide
32 assessment.

33 3. Ensure that the tests prescribed in this section are uniform
34 throughout this state.

35 4. Ensure that the tests prescribed in this section are able to be
36 scored in an objective manner and are not intended to advocate any
37 sectarian, partisan or denominational viewpoint.

38 5. Ensure that the tests prescribed in this article collect only
39 types of pupil nontest data that are approved by the state board at a
40 public meeting and published on the website of the state board pursuant to
41 paragraph 7 of this subsection.

42 6. Include within its budget all costs pertaining to the tests
43 prescribed in this article. If sufficient monies are appropriated, the
44 state board may provide achievement test services to school districts that
45 request assistance in testing pupils in grades additional to those
46 required by this section.

1 7. Survey teachers, principals and superintendents on
2 achievement-related nontest indicators, including information on
3 graduation rates by ethnicity and dropout rates by ethnicity for each
4 grade level. Before the survey, the state board shall approve at a public
5 meeting the nontest indicators on which data will be collected and shall
6 post in a prominent position on the home page of the state board's website
7 a link to the nontest indicators entitled "What nontest data does the
8 state of Arizona collect about Arizona pupils?". The linked webpage shall
9 state the types of data collected, the reasons for the collection of the
10 data and the entities with which the data is shared. In conducting the
11 survey and collecting data, the state board shall not violate the
12 provisions of the family educational rights and privacy act (P.L. 93-380),
13 as amended, or disclose personally identifiable information.

14 8. Establish a fair and consistent method and standard by which
15 test scores from schools in a district may be evaluated taking into
16 consideration demographic data. The state board shall establish
17 intervention strategies to assist schools with scores below the acceptable
18 standard. The state board shall annually review district and school
19 scores and shall offer assistance to school districts in analyzing data
20 and implementing intervention strategies. The state board shall use the
21 adopted test and methods of data evaluation for a period of at least ten
22 years.

23 9. Participate in other assessments that provide national
24 comparisons as needed.

25 10. Require in the contract for the statewide assessment pursuant
26 to this section that test ~~scores and assessment data from the third grade~~
27 ~~reading portion of the statewide assessment adopted pursuant to this~~
28 ~~section be received by local education agencies on or before May 15 of~~
29 ~~each academic year and that the~~ scores and ~~assessment~~ data from ~~all other~~
30 ~~portions of~~ the statewide assessment adopted pursuant to this section be
31 received by local education agencies on or before ~~May 25~~ MAY 26 of each
32 academic year. The state board shall impose penalties on the contractor
33 for scores received after ~~these dates~~ MAY 26, UNLESS THE CONTRACTOR
34 PROVIDES UNOFFICIAL TEST SCORES TO LOCAL EDUCATION AGENCIES ON OR BEFORE
35 MAY 26. ~~If the state board alters the statewide assessment testing window~~
36 ~~for any reason, the state board may adjust the dates by which local~~
37 ~~education agencies are required to receive the scores and assessment data~~
38 ~~proportionately. If the state board adjusts the dates by which local~~
39 ~~education agencies are required to receive the scores and assessment data,~~
40 ~~the state board may not impose penalties on the contractor unless the~~
41 ~~scores and assessment data are received after the adjusted dates. THE~~
42 CONTRACTOR MAY PROVIDE UNOFFICIAL TEST SCORES AND DATA FROM THE STATEWIDE
43 ASSESSMENT ADOPTED PURSUANT TO THIS SECTION TO LOCAL EDUCATION AGENCIES TO
44 COMPLY WITH THE DEADLINES PRESCRIBED BY THIS PARAGRAPH.

45 B. The achievement tests adopted by the state board as provided in
46 subsection A of this section shall be given at least annually. Nontest

1 indicator data and other information shall be collected at the same time
2 as the collection of achievement test data.

3 C. Local school district governing boards shall:

4 1. Administer the tests prescribed in subsection A of this section.

5 2. Survey teachers, principals and superintendents on
6 achievement-related nontest indicator data as required by the state board,
7 including information related to district graduation and dropout rates.
8 In conducting the survey and collecting data, the governing board shall
9 not violate the provisions of the family educational rights and privacy
10 act (P.L. 93-380), as amended, or disclose personally identifiable
11 information.

12 D. Any additional assessments for high school pupils that are
13 adopted by the state board after November 24, 2009 shall be designed to
14 measure college and career readiness of pupils.

15 E. If a high school pupil who is enrolled in a school district or
16 charter school participates in a nationally recognized assessment that is
17 both adopted by the state board of education pursuant to subsection A of
18 this section and administered by a person other than the school district
19 or charter school, the pupil or pupil's parent or guardian may submit the
20 pupil's official score report for the assessment to the school district or
21 charter school. On receipt of an official score report pursuant to this
22 subsection, the school district or charter school shall do all of the
23 following:

24 1. Record the score in the pupil's file.

25 2. Report the score to the state board of education and the
26 department of education.

27 3. If the pupil or pupil's parent or guardian submits an official
28 score report pursuant to this subsection to the school district or charter
29 school before the date on which the school administers the tests
30 prescribed in subsection A of this section, allow the pupil to opt out of
31 participation in the assessment that is administered by the school
32 district or charter school. If a pupil opts out of an assessment pursuant
33 to this paragraph, the school district or charter school shall use the
34 data from the pupil's official score report for the pupil's achievement
35 test data for the purposes of this section. This paragraph does not
36 require a school district or charter school to allow a pupil to opt out of
37 the collection of nontest indicator data or other information that is
38 collected about pupils who participate in the assessment that is
39 administered by the school district or charter school pursuant to this
40 section.

41 F. A test for penmanship shall not be required pursuant to this
42 article.

43 G. If a local education agency requests a raw data file of
44 assessment data for the pupils tested at the local education agency, the
45 department of education shall fulfill the request in a format that is
46 usable for assessment diagnostics within thirty days after the request.
47 The local education agency shall follow all applicable student data

1 privacy laws and may not publicly disclose individual student achievement
2 results.

3 H. A school district or charter school may administer the statewide
4 assessment in the form of a written test ~~if~~ FOR any of the following
5 ~~applies~~ REASONS:

6 1. A written test is required pursuant to an individualized
7 education program or a section 504 plan as defined in section 15-731.

8 2. To accommodate special circumstances.

9 3. For religious purposes.

10 4. On request by a pupil's parent or guardian.

11 I. For the purposes of this section, "nationally recognized" has
12 the same meaning prescribed in section 15-741.02.

13 Sec. 3. Section 15-742, Arizona Revised Statutes, is amended to
14 read:

15 15-742. Contract to purchase tests; bond; score distribution
16 deadline; action for damages

17 A. The state board of education shall enter into contracts with
18 contractors ~~for the~~ TO purchase ~~of~~ the tests adopted by the state board
19 pursuant to sections 15-203 and 15-741. Notwithstanding section 41-2546,
20 the state board may enter into contracts ~~for the~~ TO purchase ~~of~~ nationally
21 standardized norm-referenced tests pursuant to this section for a duration
22 of up to ten years. The contracts may also provide for the distribution
23 of the tests to the school districts and the scoring of the tests.

24 B. Contractors shall give a cash or corporate surety bond payable
25 to this state and approved by the state board indemnifying the state in
26 the test purchases in an amount ~~not less than five hundred nor~~ OF AT LEAST
27 \$500 AND NOT more than ~~ten thousand dollars~~ \$10,000 as may be determined
28 by the state board. The contractor shall faithfully comply with the
29 conditions of the contract and shall furnish to the state the tests as
30 provided in the contract at prices not exceeding the lowest prices then
31 granted to any buyer. If there is a decrease in the prices given to a
32 person purchasing such tests from the contractor, ~~the~~ THIS state shall
33 have the benefit of the decrease in price.

34 C. The contractor shall file with the state board a sworn statement
35 stating the lowest prices for which the contractor's series of tests is
36 sold anywhere in the United States.

37 D. Any contract entered into pursuant to this section shall require
38 that THE CONTRACTOR DISTRIBUTE test scores ~~and assessment data from the~~
39 ~~third grade reading portion of the statewide assessment adopted pursuant~~
40 ~~to section 15-741 be received by local education agencies on or before May~~
41 ~~15 of each academic year and the scores and assessment data from all other~~
42 ~~portions of the statewide assessment adopted pursuant to section 15-741 be~~
43 ~~received by~~ TO local education agencies on or before ~~May 25~~ MAY 26 of each
44 academic year. THE CONTRACTOR MAY DISTRIBUTE UNOFFICIAL TEST SCORES AND
45 DATA FROM THE STATEWIDE ASSESSMENT TO LOCAL EDUCATION AGENCIES TO COMPLY
46 WITH THE DEADLINE PRESCRIBED BY THIS SUBSECTION.

1 E. If a contractor violates a condition of the contract, the
2 attorney general, on request of the state board of education, shall
3 institute an action for damages on the bond of the contractor.

4 Sec. 4. Section 15-743, Arizona Revised Statutes, is amended to
5 read:

6 15-743. Test results; annual reports; five-year cumulative
7 summary; distribution of scores to schools and
8 parents; testing window

9 A. The state board of education shall provide annual reports for
10 ~~every~~ EACH school and school district and ~~the~~ THIS state as a whole. The
11 state board shall annually submit these reports to school districts, the
12 legislature and the county school superintendents and shall make them
13 available to the public. The state board shall publish and distribute the
14 reports by September 1 and shall ~~also~~ provide a cumulative summary of the
15 reports every five years. The annual reports and cumulative summary
16 results shall include:

17 1. Average and range scores on the statewide assessment adopted
18 pursuant to section 15-741.

19 2. Standardized test scores by subject area according to
20 percentiles and stanines for the school, school district, county, state
21 and nation.

22 3. Achievement-related nontest indicator data collected in the
23 survey of teachers, principals and superintendents as required by section
24 15-741, including information related to dropout rates by ethnicity for
25 each grade level and graduation rates and postsecondary employment and
26 education by ethnicity. In reporting such data, the state board shall not
27 violate the provisions of the family educational rights and privacy act
28 (P.L. 93-380), as amended, or disclose personally identifiable
29 information.

30 4. The numbers of pupils who have completed the academic standards
31 at grades three, eight and twelve.

32 B. Test results on individual pupils shall not be made available to
33 the public by name or individually identifiable reference.

34 C. The state board shall provide a copy of the results from the
35 tests prescribed in section 15-741, subsection A for each school district
36 to that school district. Results may not be released to the public until
37 ten days after the reports are provided to each school district.

38 D. The state board shall provide each school district **THAT IS**
39 participating in the testing program with a copy of each pupil's
40 standardized norm-referenced test scores in reading, language arts and
41 mathematics, and the associated grade equivalents, percentiles and
42 stanines for the school, school district, county, state and nation, a
43 report of pupil progress on an ongoing and annual basis, showing the
44 trends in gain or loss in pupil achievement over time in reading, language
45 arts and mathematics for all years in which pupils are enrolled in the
46 school district for an entire school year and for which this information
47 is available and a report of the pupil progress for pupils not enrolled in

1 a district for an entire school year. The state board shall ~~also~~ provide
2 each school district with each pupil's statewide assessment scores and the
3 statewide assessment scores for the school, school district, county and
4 state.

5 E. The school district shall provide a parent or guardian of each
6 pupil participating in the standardized norm-referenced testing part of
7 the program with a copy of the pupil's scores in reading, language arts
8 and mathematics, and the percentiles and stanines. The school district
9 shall provide a parent or guardian of each pupil with a copy of the
10 pupil's scores on the statewide assessment and the associated scores for
11 the school, school district, county and state. The school district shall
12 make available to the public through the reports those scores for each
13 school in the school district and for the school district, county, state
14 and nation.

15 F. Any testing window established and executed by the department of
16 education or the state board for the administration of the statewide
17 assessment adopted pursuant to section 15-741 may not be longer than
18 ~~[four] [SIX] consecutive school weeks shall ensure that local education~~
19 ~~agencies receive test scores and assessment data from the third grade~~
20 ~~reading portion of the statewide assessment on or before May 15 of each~~
21 ~~academic year and that the scores and assessment data from all other~~
22 ~~portions of the statewide assessment adopted pursuant to section 15-741~~
23 ~~are received by local education agencies on or before May 25 of each~~
24 ~~academic year.~~ THE TESTING WINDOW ESTABLISHED PURSUANT TO THIS SUBSECTION
25 FOR AN ASSESSMENT THAT IS ADMINISTERED TO STUDENTS IN ANY OF GRADES THREE
26 THROUGH EIGHT MAY NOT BEGIN BEFORE THE ~~[FOURTH]~~ ~~[SECOND]~~ WEEK OF APRIL
27 DURING ANY SCHOOL YEAR UNLESS THE ASSESSMENT IS AN ALTERNATE ASSESSMENT
28 THAT IS ADMINISTERED PURSUANT TO A STUDENT'S SECTION 504 PLAN OR
29 INDIVIDUALIZED EDUCATION PROGRAM AS DEFINED IN SECTION 15-731. The
30 department of education or the state board may not prohibit the
31 superintendent or the staff of a local education agency from sharing
32 statewide assessment data with the local education agency's district
33 governing board or governing body or otherwise impede the sharing of
34 statewide assessment data.

35 ~~G. Notwithstanding subsection F of this section and sections 15-741~~
36 ~~and 15-742, the department of education, subject to review and approval by~~
37 ~~the state board, may adjust the testing window for the statewide~~
38 ~~assessment adopted pursuant to section 15-741 in academic years that the~~
39 ~~state board is revising current proficiency levels or is establishing new~~
40 ~~proficiency levels for the statewide assessment adopted pursuant to~~
41 ~~section 15-741.~~

42 Sec. 5. Implementation

43 The state board of education shall enter into contracts with
44 contractors to purchase tests pursuant to sections 15-741 and 15-742,
45 Arizona Revised Statutes, as amended by this act.

Senate Amendments to H.B. 2032

- 1 Enroll and engross to conform
- 2 Amend title to conform

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